

ELIZABETH II



1990 CHAPTER ii

An Act to confirm an agreement between New Southgate Cemetery and Crematorium Limited and the National Spiritual Assembly of the Baha'is of the United Kingdom for the transfer to the said assembly of the freehold of certain lands forming part of the cemetery administered by the said company; and for other purposes.  
[22nd February 1990]

**W**HEREAS—

(1) The Great Northern London Cemetery Company (hereinafter called “Great Northern”) was incorporated by the Great Northern London Cemetery Act 1855 and, under the powers of that Act, purchased lands formerly in the urban district of East Barnet, in the county of Hertford, and now in the London borough of Barnet (hereinafter called “the borough”) and constructed a cemetery (hereinafter called “the cemetery”) on a portion of the said lands:

1855 c. clix.

(2) Further provisions were made with regard to the cemetery and further powers were conferred on Great Northern by the Great Northern London Cemetery Act 1876 and the Great Northern London Cemetery Act 1896, and Great Northern was empowered, by the Great Northern London Cemetery (Crematorium) Act 1953 to erect and maintain and has erected, within the cemetery a crematorium for the burning of human remains:

1876 c. ccxvii.

1896 c. xxxix.

1953 c. xii.

(3) The cemetery is situated on that portion of the lands purchased by Great Northern under the said Act of 1855 which lies on the east side of Brunswick Park Road in the borough:



## c. ii New Southgate Cemetery and Crematorium Limited Act 1990

1961 c. xiii.  
1968 c. xxvii.

(4) The remainder of such lands lie on the west side of the said Brunswick Park Road and have been sold by Great Northern in pursuance of powers conferred upon it by the Great Northern London Cemetery Company Act 1961 and the Great Northern London Cemetery Company Act 1968:

(5) Great Northern entered into an agreement dated 22nd October 1975 with New Southgate Cemetery and Crematorium Limited (hereinafter called "New Southgate") for the sale or transfer to New Southgate of (inter alia) a part of the cemetery and for the transfer to New Southgate of all moneys held by Great Northern such moneys to be applied towards the maintenance and improvement of that part of the cemetery in pursuance of section 5 of the said Act of 1968:

(6) New Southgate carries on the business of that part of the cemetery including crematoria at New Southgate in the borough and is the owner of the freehold estate in the land described in Schedule 1 hereto (hereinafter called "the transferred land"):

1929 c. 23.

(7) National Spiritual Assembly of the Baha'is of the British Isles was incorporated as an unlimited company under the Companies Act 1929 on 5th August 1939, and having changed its name by special resolution and with the approval of the Secretary of State, was on 3rd February 1972 registered as incorporated under the name of The National Spiritual Assembly of the Baha'is of the United Kingdom (hereinafter called "the Baha'is"):

(8) The Baha'is desire to acquire the transferred land for the better protection of the grave of Shoghi Effendi their former spiritual leader and to beautify and further maintain the said land in which they presently enjoy the unused rights of burial:

(9) New Southgate has entered into an agreement (hereinafter called "the scheduled agreement") dated 22nd March 1988 with the Baha'is under which, subject to the sanction of Parliament, New Southgate will convey the transferred land to the Baha'is subject to the rights, exceptions and other matters set out in the scheduled agreement:

(10) It is expedient that the scheduled agreement should be confirmed by Parliament and that the other provisions contained in this Act should be enacted:

(11) In the month of November 1988 a plan (hereinafter referred to as "the deposited plan") marked New Southgate Cemetery and Crematorium Limited showing the transferred land edged in red was deposited in the office of the Clerk of the Parliaments, in the Private Bill Office of the House of Commons and at the registered office of New Southgate, Pembroke House, 40 City Road, London E.C.1:

(12) The objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short title.

1. This Act may be cited as the New Southgate Cemetery and Crematorium Limited Act 1990.

Interpretation.

2. In this Act unless the context otherwise requires—

"the Baha'is" means the National Spiritual Assembly of the Baha'is of the United Kingdom;



“deposited plan” means the plan referred to in the Preamble to this Act;

“New Southgate” means New Southgate Cemetery and Crematorium Limited;

“scheduled agreement” means the agreement referred to in section 3 (Confirmation of agreement) of this Act;

“transferred land” means the land described in Schedule 1 to this Act.

3.—(1) Subject to the alterations in subsection (2) below the agreement dated 22nd March 1988 and made between New Southgate of the one part, and the Baha'is of the other part, a copy of which is set forth in Schedule 2 to this Act, is hereby confirmed and made binding upon the parties thereto.

Confirmation of agreement.

(2) Clause 4 of the said agreement shall have effect with the substitution for the words from “but subject always” to the end of the clause, of the words “but subject always to the indemnification by New Southgate of the Baha'is in respect of any breach or non-fulfilment of such obligations antecedent to the date of such conveyance.”

4. On and after completion of the scheduled agreement all agreements, conveyances, contracts, deeds and other instruments entered into or made with or by New Southgate which relate to the transferred land or any part or parts thereof and which are in force on the passing of this Act shall be as binding and of as full force and effect in every respect against and in favour of the Baha'is and may be enforced as fully and effectually as if, instead of New Southgate, the Baha'is had been a party thereto or bound thereby or entitled to the benefit thereof.

Saving of existing obligations and rights.

5. Notwithstanding anything in any of the Acts referred to in the Preamble to this Act or any other enactment New Southgate on completion of the sale and transfer to the Baha'is of the transferred land shall be relieved of its obligation to maintain and operate a cemetery and crematorium on the transferred land.

Cesser of obligations.

6.—(1) The powers of the Baha'is in relation to the transferred land shall include power—

Memorials, levelling of graves, etc.

(a) to put, and keep, in order any memorial therein;

(b) to level any grave therein;

(c) to remove any memorial therein;

(d) to alter the position of any such memorial;

(e) to lay out the whole or any part or parts thereof as an open space.

(2) Before exercising a power conferred by paragraph (b), (c), (d) or (e) of the foregoing subsection the Baha'is shall—

(a) publish a notice of their intention to do so in each of two consecutive weeks in a local newspaper circulating in the borough, with an interval between the date of publication of not less than six clear days;

(b) display a notice thereof in conspicuous positions on the transferred land;

(c) serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains are interred therein, if after reasonable inquiry the name and address of such owner or relative can be ascertained; and

(d) serve a notice thereof upon the Commission.



(3) Each of the notices shall—

- (a) contain brief particulars of the Baha'is' proposals, and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;
- (b) specify the date on which it is intended that the Baha'is will begin to carry out the proposals, which shall not be earlier than three months after the date of the later of the two publications, or than three months after the date on which the notice on the transferred land is first displayed, or, than three months after the date of service of the last or only notice required to be served whichever is the latest; and
- (c) state the effect of the next following subsection.

(4) If notice of objection to a proposal, and of the ground thereof, is given to the Baha'is before the date specified under paragraph (b) of the last foregoing subsection, that proposal shall not be carried out without the consent of the Secretary of State unless the notice is withdrawn.

(5) (a) The Baha'is may put to such use as they think appropriate or destroy, any memorial removed under this section, unless it is claimed and removed by the person claiming it or some person acting on his behalf within three months after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.

(b) The Baha'is shall pay the reasonable costs of removal where a memorial is claimed and removed by any person under this subsection and, unless a substitute memorial is erected under subsection (6) of this section, shall also, if the removed memorial is erected elsewhere, pay the reasonable costs of re-erecting it.

(6) Where a memorial is removed by the Baha'is under this section the Baha'is may, and shall if so requested by the person claiming it or some person acting on his behalf, erect at their own expense a memorial in substitution therefor within the transferred land.

(7) The Baha'is shall cause a record to be made of each memorial removed from the transferred land under this section containing—

- (a) a copy of any inscription on it; and
- (b) if it is intended to preserve the memorial, a statement showing where it has been taken;

and shall deposit a copy of the record with the Registrar General.

(8) (a) Nothing in the foregoing provisions of this section shall relieve the Baha'is from any obligation to which they are subject to obtain for any work a faculty or licence of a consistory court.

(b) Subsections (2) to (4) of this section shall not have effect in relation to any work for which the Baha'is obtain such a faculty or licence; and subsection (5) thereof shall not have effect in relation to any memorial for whose removal such faculty or licence was obtained.

(9) In this section and in section 7 (For protection of Commonwealth War Graves Commission) of this Act—

“the Commission” means the Commonwealth War Graves Commission;

“grave” includes a grave space;

“memorial” means any object erected, placed or planted for the



commemoration of the dead, or any part thereof and includes any wall, kerb or railing protecting, enclosing or marking a grave or memorial.

7.—(1) In this section—

“Commonwealth war burial” means a burial of any officer, rating or other rank of the naval, military or air forces of His Majesty, who died in the war of 1914 to 1921 or in the war of 1939 to 1947 or of any other person accepted by the Commission as falling within the terms of its founding Royal Charters;

“Commonwealth war grave” means any grave in which a Commonwealth war burial has taken place;

For protection of  
Commonwealth  
War Graves  
Commission.

(2) The Baha'is shall—

- (a) not later than the date upon which a notice required to be published under paragraph (a) of subsection (2) of section 6 (Memorials, levelling of graves, etc. of this Act is first published in a newspaper circulating in the borough serve upon the Commission a copy of any notice which the Baha'is are required to publish pursuant to the said section 6;
- (b) give written notice to the Commission of their intention to exercise a power conferred by subsection (1) of the said section 6;
- (c) give written notice to the Commission of their intention to apply to the Secretary of State for a licence or to apply for a faculty or licence of a consistory court for the purposes of exercising a power conferred by subsection (1) of the said section 6 or for any other purpose;

and in any such case shall not exercise any such power in respect of any grave, vault or memorial provided or maintained by or on behalf of the Commission, or any other grave or vault containing a Commonwealth war burial, except with the consent in writing of the Commission and such consent shall not unreasonably be withheld.

(3) The Baha'is shall not in pursuance of the powers of the said section 6 remove any memorial placed or erected over any Commonwealth war grave unless they have first given to the Commission satisfactory assurance in writing in regard to all or such of the following matters as the Commission considers appropriate, namely: —

- (a) that no other memorial shall be placed or erected over such grave;
- (b) that any Commonwealth war burial in such grave shall at all times be protected from interference or disturbance otherwise than interference or disturbance authorised by a licence granted by the Secretary of State or authorised by a faculty or licence of a consistory court after prior notification to the Commission of the application for any such licence or faculty;
- (c) that in the case of any memorial placed or erected by the Commission over any such grave or other memorial for which the Commission is responsible such memorial shall be removed only in accordance with such arrangements and in such manner including disposal of the memorial as shall be agreed in writing between the Baha'is and the Commission.

(4) The Baha'is shall, in respect of any memorial removed in pursuance of the powers contained in the said section 6 and being a memorial relating to any Commonwealth war burial provide at their own cost a reasonable alternative site within the transferred land or elsewhere if the Commission requests and shall at their own cost re-erect the same or a reasonable alternative



c. ii New Southgate Cemetery and Crematorium Limited Act 1990

memorial in accordance with such arrangements as shall be agreed in writing by the Commission:

Provided that the Commission shall be entitled if it so elects to carry out the said work of removal and re-erection and the reasonable costs thereof shall be repaid to the Commission by the Baha'is.

(5) The Commission, its servants, employees, agents or any other person duly authorised by the Commission shall be permitted access, at all times for all purposes and with any necessary equipment, in connection with any grave, vault or memorial provided or maintained by or on behalf of the Commission or containing a Commonwealth war burial.

Costs of Act.

8. All costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Act, shall be paid by the Baha'is and may in whole or in part be defrayed out of revenue.



## SCHEDULES

### SCHEDULE 1

Section 2.

#### THE TRANSFERRED LAND

All that piece of land situate at Brunswick Park Road in the London borough of Barnet forming part of New Southgate Cemetery more particularly shown on the deposited plan for identification only and thereon edged in red.

### SCHEDULE 2

Section 3.

#### THE SCHEDULED AGREEMENT

This Agreement is made this Twenty-second day of March One thousand nine hundred and eighty-eight Between New Southgate Cemetery and Crematorium Limited having its registered office at Pembroke House, 40 City Road, London E.C.1 (hereinafter called "New Southgate") of the one part and The National Spiritual Assembly of the Baha'is of the United Kingdom of 27 Rutland Gate, London S.W.7 (hereinafter called "the Baha'is") of the other part.

Whereas:—

(1) New Southgate carries on the business of a cemetery and crematorium at New Southgate in the London Borough of Barnet and has an estate in fee simple in possession of the land more particularly described in the First Schedule hereto subject to rights and other matters more particularly set out in the Second Schedule hereto.

(2) The Baha'is are the grantee of the unused rights of burial in the land more particularly described in the First Schedule hereto and wish to acquire the said land more particularly described in the First Schedule for the better protection of the grave of their former Spiritual Leader and to beautify and further maintain the area in a dignified and respectful manner.

Now it is hereby agreed as follows:—

1. New Southgate shall convey to the Baha'is All that piece or parcel of land more particularly described in the First Schedule hereto for an estate in fee simple subject to the rights exceptions and other matters set out in the Second Schedule hereto.

2. Prior to the execution of this agreement New Southgate has deduced its title to the land more particularly described in the First Schedule hereto as the Baha'is hereby admit.

3. New Southgate will convey as Beneficial Owner.

4. In the Conveyance to the Baha'is the Baha'is will covenant with New Southgate that they will at all times as from the date hereof discharge the obligations liabilities and duties of New Southgate in respect of the maintenance and upkeep of graves situate on the land more particularly described in the First Schedule hereto and liability or obligation relating to the repair or maintenance of individual memorials full details of which the Baha'is hereby acknowledge they have received from New Southgate and to indemnify and keep indemnified New Southgate against all claims actions demands and the costs relating thereto arising from any breach or non-fulfilment of the obligations liabilities and duties herein in this clause referred to but subject always to the indemnification of New Southgate in favour of the Baha'is



SCH. 2  
—cont.

arising out of any breach or non-fulfilment of any such obligations antecedent to the date of such conveyance and in respect of which New Southgate shall remain liable.

5. New Southgate undertakes to keep and maintain the Statutory Records relating to burials that have taken place in the land more particularly described in the First Schedule hereto so long as it shall retain ownership of the undertaking known as New Southgate Cemetery and Crematorium and shall afford the Baha'is reasonable access to such records.

6. In the conveyance to the Baha'is New Southgate will give the usual undertaking for the production and safe custody of the documents of title.

7. As from the date of this agreement New Southgate will allow the Baha'is into possession of the land more particularly described in the First Schedule hereto.

1976 c. xxvii.

8. The Baha'is hereby acknowledge that they are not entitled to the benefit of or any part of the monies received by New Southgate by virtue of section 12 of the Great Northern London Cemetery Act 1976 for the purposes of the maintenance and improvement of the land more particularly described in the First Schedule hereto.

9. Until the Conveyance shall be completed New Southgate at the written request of the Baha'is will in relation to the land more particularly described in the First Schedule hereto exercise the powers contained in section 8 of the Great Northern London Cemetery Act 1976 subject to the Baha'is reimbursing New Southgate for all costs and expenses incurred subject nevertheless to matters reserved in sections 10 and 16 of the said Act for the protection of the Commonwealth War Graves Commission.

10. The date for completion of this agreement shall be either the thirty-first day of July One thousand nine hundred and eighty-nine or twenty-eight days after all conditions referred to in Clause 11 hereof shall have been fulfilled (whichever shall be the later).

11.—(i) As soon as is reasonably practical after the date of this agreement the parties hereto shall promote and hereafter diligently proceed with a Bill in Parliament to authorise New Southgate to confirm this agreement and complete the Conveyance and will use their best endeavours to ensure that the Bill passes into law in the year One thousand nine hundred and eighty-nine.

(ii) This agreement shall be scheduled to the Bill and shall be subject to such alterations as Parliament may think fit to make therein.

12. In the Conveyance to the Baha'is the Baha'is will covenant to observe and perform all obligations and duties in respect of any grave existing on the land more particularly described in the First Schedule hereto at the date hereof.

As witness the hands of the parties hereto the day and year first before written.

#### THE FIRST SCHEDULE

##### *The land subject to this Agreement*

All that piece or parcel of freehold land situate at Brunswick Park Road in the London Borough of Barnet presently forming part of New Southgate Cemetery as the same is more particularly delineated for identification only on a plan signed on behalf of the parties hereto and deposited on the execution hereof with the vendors' solicitors and thereon edged in red Together with a right of way for the Baha'is and all those persons authorised by them for the



purpose of access to and egress from the said land with or without vehicles over and along the roadway coloured blue on the said plan at all times and the benefit of the covenant contained in the Deed of Covenant dated the twentieth day of October One thousand nine hundred and eighty-three and made between the Mayor and Burgesses of the London Borough of Barnet of the one part and New Southgate of the other part.

SCH. 2  
—cont.

#### THE SECOND SCHEDULE

*The rights exceptions and other matters subject to which the land is sold*

1. All rights of burial granted by New Southgate or The Great Northern London Cemetery Company together with all necessary rights of access for the purposes of burial and the erection re-erection or removal of memorials or any graves.

2. The rights and interests of each and every owner of any grave situate on the land more particularly described in the First Schedule hereto.

3. The rights and interests of any person who is a personal representative or relation of any deceased person whose remains are interred therein.

4. All other trusts uses obligations liabilities and restrictions of whatever nature affecting the said land.

5. The rights of New Southgate and all other persons authorised by it to have reasonable access to the said land for the exercising of their rights of burial erection of memorials and gaining access to any grave or memorial situate on the said land.

6. The rights reserved to members of the public by virtue of Clause 3 of a Deed of Covenant dated twenty-third day of October One thousand nine hundred and eighty-three and made between the Mayor and Burgesses of the London Borough of Barnet of the one part and New Southgate of the other part so far as the same subsist and are capable of being enforced.

7. The right of the Commonwealth War Graves Commission in respect of any grave situate on the land more particularly described in the First Schedule hereto.

#### THE THIRD SCHEDULE

##### *Documents of Title*

|                   |            |                                                                                                      |
|-------------------|------------|------------------------------------------------------------------------------------------------------|
| 1860 2nd November | Conveyance | William Bowles.<br>The Great North London Cemetery<br>Company.                                       |
| 1977 1st August   | Conveyance | The Great Northern London Cemetery<br>Company.<br>New Southgate Cemetery and<br>Crematorium Limited. |

|                                                                                                    |   |                 |
|----------------------------------------------------------------------------------------------------|---|-----------------|
| Signed by Richard Nelson for and on<br>behalf of New Southgate Cemetery<br>and Crematorium Limited | } | RICHARD NELSON. |
|----------------------------------------------------------------------------------------------------|---|-----------------|

|                                                                                                           |   |                                                                |
|-----------------------------------------------------------------------------------------------------------|---|----------------------------------------------------------------|
| Signed by for and on behalf of The<br>National Spiritual Assembly of the<br>Baha'is of the United Kingdom | } | HUGH ADAMSON, Secretary General<br>PHILIP HAINSWORTH, Chairman |
|-----------------------------------------------------------------------------------------------------------|---|----------------------------------------------------------------|









# New Southgate Cemetery and Crematorium Limited Act 1990

## CHAPTER ii

### ARRANGEMENT OF SECTIONS

#### Section

1. Short title.
2. Interpretation.
3. Confirmation of agreement.
4. Saving of existing obligations and rights.
5. Cesser of obligations.
6. Memorials, levelling of graves, etc.
7. For protection of Commonwealth War Graves Commission.
8. Costs of Act.

#### SCHEDULES:

- Schedule 1—The transferred land.  
Schedule 2—The scheduled agreement.



